



# CHEYENNE REGIONAL AIRPORT BOARD

## | BOARD COMMUNICATION COVER MEMORANDUM |

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**DATE:** May 30, 2024

**TO:** The Cheyenne Regional Airport Board

**FROM:** Jennifer Nelson, Director of Finance

**RE:** Consideration and approval of FAA Grant Application No. AIP-069 in the amount of \$850,000

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### **EXECUTIVE SUMMARY:**

For your review and consideration is FAA Grant No. AIP-069, for \$850,000 in federal assistance. This grant is for the rehabilitation of the tower under the Bipartisan Infrastructure Law (BIL). The federal funds were granted under the BIL FAA Contract Tower grant application process. The grant is 100% federally funded and does not require a state or local match.

The funds from this grant will be used to design and construct the rehabilitation of the Air Traffic Control Tower (ATCT) at Cheyenne Regional Airport (CYS). The CYS ATCT was originally constructed in 2003. A building assessment was performed in December, 2021, and it was determined that the building requires rehabilitation that includes sealing for water intrusion, replacing doors, and other general building repairs. Additionally, the report identified HVAC and electrical improvements that are required to keep the existing equipment operational and to improve energy efficiency.

### **RECOMMENDED ACTION:**

Authorize staff to proceed with the grant process, presenting the same information for approval, submission, and acceptance to the City of Cheyenne and County of Laramie as required signatories.

## Bipartisan Infrastructure Law, Airport Terminal and Tower Project Information

### General

**Airport Name:** Cheyenne Regional Airport (CYS)

**LOCID:** CYS

**Point of Contact's Name:** Tim Bradshaw

**Point of Contact's Title:** Director of Aviation

**POC's Phone Number:** 307-316-9179 **Extension:**

**POC's Email Address:** tbradshaw@cheyenneairport.com

### Project Overview

**Project Type:** ☐ Terminal ☐ Tower

**Multi-Modal Terminal:** ☐ Yes ☐ No

**Current Project Stage:** ☐ Planning ☐ Environmental ☐ Design ☐ Construction

**Project Description** (600 Characters Maximum):

Design and construct the rehabilitation of the Air Traffic Control Tower (ATCT) at Cheyenne Regional Airport (CYS). The CYS ATCT was originally constructed in 2003. A building assessment was performed in December, 2021, and it was determined that the building requires rehabilitation that include sealing for water intrusion, replacing doors and windows, and other general building repairs. Additionally, the report identified HVAC and electrical improvements that are required to keep the existing equipment operational and to improve energy efficiency.

### Target Timeframes

**Date Project Costs Known** (Pick a date): 02/2024

**Date Grant Fully Executed** (Pick a date): 04/20/2024

**Construction Start Date** (Pick a date): 05/2024

## Project Status

**Total (Estimated) Project Cost:** \$ 850,000

**Amount of Funding Requested:** \$ 850,000

**Match Available:** ☒ Yes ☐ No

**Delivery Method** (choose one):

☒ Design/Bid ☐ Design/Build ☐ CM at Risk ☐ Other:

**Bid or GMP:** ☒ Yes ☐ No. If "No," Estimated bid/GMP date (Pick a date):

**Phased Project:** ☐ Yes ☐ No. If "Yes," Phase: of

**Do you have a comprehensive financial plan?** ☒ Yes ☐ No

**Is the project on an approved ALP?**

☒ Yes ☐ No. If "Yes," enter the approval date (Pick a date): 05/05/2014

**Is environmental determination complete?**

☒ Yes ☐ No. If "Yes," enter the approval date (Pick a date): 12/14/2023

**Is airspace approval complete?**

☐ Yes ☐ No ☐ N/A.

If "Yes," enter the airspace case number:

**Approved Forecasted Enplanements:** 16,310

**Year(yyyy):** 2014

**Existing Square Footage:** 2,100

**Proposed Square Footage:** 2,100

**Is this project phased and/or associated with an approved BIL, AIP or PFC project?**

☐ Yes ☐ No ☐ N/A

**Added data:** If "Yes," provide the grant number(s), and/or PFC application number, along with the amount of existing funding. (300 Characters Maximum):

## Program Considerations (Terminal and Tower)

If you check a box below, you must describe how the project satisfies the criteria.  
Check all that apply to the proposed project.

☒ **Increase Capacity and Passenger Access.** Description (450 Characters Maximum):

The tower is a critical component of CYS's air service and needs to be maintained in order to provide passengers continued and increased commercial connection. CYS is one of the top diversion airports for air traffic traveling to DEN. The tower provides an essential services to allow diversions to occur and enhance safety and operability for the region.

☒ **Replacing Aging Infrastructure.** Description (450 Characters Maximum):

A building assessment (2021) determined that the building requires rehabilitation that includes sealing for water intrusion, replacing doors and windows, and other general building repairs to improve personnel safety and overall life expectancy of the building. Additionally, HVAC and electrical improvements are required to keep the existing equipment operational and to improve energy efficiency.

☒ **Achieves Compliance with Americans with Disabilities Act and Expands Accessibility for Persons with Disabilities.** Description (450 Characters Maximum):

Minor maintenance will be conducted on the elevator and the associated electrical and mechanical components to ensure that building maintains ADA compliance. The design will also look at ways to improve ADA accessibility.

☐ **Improves Airport Access for Historically Disadvantaged Populations.**  
Description (450 Characters Maximum):

☒ **Improves Energy Efficiency.** Description (450 Characters Maximum):

The existing facility has poor energy performance, specifically in HVAC and Electrical infrastructure. Building renovations will adhere to LEED standards wherever feasible, in order to reduce energy consumption, enhance indoor environmental quality, improve resiliency, and ultimately decrease carbon emissions to further reduce long-term impacts on the climate.

☐ **Improves Airfield Safety through Terminal or Tower Relocation.**

Description (450 Characters Maximum):

☒ **Encourages Actual and Potential Competition.** Description (450 Characters Maximum):

Maintaining the ATCT is crucial for preserving air service at CYS. The air service plays a key role in improving the transportation to and from the city, which increases tourism and positively impacts the local economy. By having the ATCT, it encourages other potential air carriers to consider our Airport when expanding air service.

☒ **Good Paying Jobs.** Description (450 Characters Maximum):

The ATCT is staffed with Air Force Air Traffic Controllers (Squadron 243rd), and is used for training controllers. The rehabilitation ensures that ATCT personnel can continue to use the facility, preserving their current good-paying positions and generating additional employment opportunities as trained personnel transition to other ATCTs for long-term careers. Additionally, the project will include good-paying jobs for construction.

### Program Considerations (Tower Only)

If the project is for a tower, also complete this section of the form.

**Project Type.** The project type for this grant application (choose one or both).

☐ Airport Owned, Contract Tower Program

☒ Airport Owned, Other. Describe staffing: Operated by Air Force/National Guard (FCT)

**Age of Tower (Years):** 20

**Siting Study.** Has a Siting Study been completed for a new Airport Traffic Control Tower Project?

☐ Yes ☐ No ☐ NA

If you check a box below, also describe how the project satisfies the criteria.  
Check all that apply to the proposed project.

**Appropriate Project Objective** (choose all that apply):

☐ New    ☐ Relocate    ☐ Reconstruct    ☒ Repair    ☒ Improve

**Impact on the National Airspace System.** Description (600 Characters Maximum):

The existing tower is part of the national airspace system and supports commercial, general aviation and military aircraft. This rehabilitation is necessary to ensure that the ATCT remains operational. Without an investment into the facility, the tower will approach end of life condition and will struggle to support the national airspace. The tower also plays a vital role for the Air National Guard (ANG). This facility is used for training controllers for the Air Force. The required maintenance for this tower is necessary for the continued support of the ANG and the surrounding community.

## Certifications

By entering my name below, I hereby certify that I am authorized to submit this form on behalf of the airport sponsor, all information is true and accurate to the best of my knowledge, and have or will follow, all procurement processes required under 2 CFR 200, including but not limited to:

- Davis Bacon
- Buy American
- Consultant Selection
- Disadvantaged Business Enterprise

Signature:

Date: 10/13/2023

Name: Tim Bradshaw

Title: Director of Aviation

**Submit by Email**

## Application for Federal Assistance SF-424

\*1. Type of Submission:

☐ Preapplication

☒ Application

☐ Changed/Corrected Application

\*2. Type of Application

☒ New

☐ Continuation

☐ Revision

\* If Revision, select appropriate letter(s):

\* Other (Specify)

\*3. Date Received:

06/13/2024

4. Applicant Identifier:

CYS

5a. Federal Entity Identifier:

AIP 3-56-0005-069

\*5b. Federal Award Identifier:

### State Use Only:

6. Date Received by State:

7. State Application Identifier:

### 8. APPLICANT INFORMATION:

\*a. Legal Name: Cheyenne Regional Airport Board

\*b. Employer/Taxpayer Identification Number (EIN/TIN):

83-0253531

\*c. UEI:

TXJGNCSLLTW9

### d. Address:

\*Street 1: 1401 Airport Parkway

Street 2: Suite 305

\*City: Cheyenne

County/Parish: Laramie

\*State: WY

\*Province:

USA: United States

\*Country:

\*Zip / Postal Code

### e. Organizational Unit:

Department Name:

City of Cheyenne

Division Name:

Airport Board

### f. Name and contact information of person to be contacted on matters involving this application:

Prefix: Mrs. \*First Name: Jennifer

Middle Name:

\*Last Name: Nelson

Suffix:

Title: Director of Finance and Administration

Organizational Affiliation:

\*Telephone Number: 307-316-9179

Fax Number:

\*Email: jnelson@cheyenneairport.com

**Application for Federal Assistance SF-424****\*9. Type of Applicant 1: Select Applicant Type:**

X: Other

Type of Applicant 2: Select Applicant Type:

Pick an applicant type

Type of Applicant 3: Select Applicant Type:

Pick an applicant type

\*Other (Specify)

Airport Sponsor

**\*10. Name of Federal Agency:**

Federal Aviation Administration

**11. Catalog of Federal Domestic Assistance Number:**

20.106

CFDA Title:

Airport Improvement Program

**\*12. Funding Opportunity Number:**

\*Title:

FAA Contract Tower Program

**13. Competition Identification Number:**

Title:

**14. Areas Affected by Project (Cities, Counties, States, etc.):****\*15. Descriptive Title of Applicant's Project:**

Airport Tower Renovations

Attach supporting documents as specified in agency instructions.

**Application for Federal Assistance SF-424****16. Congressional Districts Of:**

\*a. Applicant: WY-001

\*b. Program/Project: WY-001

Attach an additional list of Program/Project Congressional Districts if needed.

**17. Proposed Project:**

\*a. Start Date: 06/01/2024

\*b. End Date: 12/31/2024

**18. Estimated Funding (\$):**

|                    |            |
|--------------------|------------|
| *a. Federal        | \$ 850,000 |
| *b. Applicant      | \$ 0       |
| *c. State          | \$ 0       |
| *d. Local          | \$ 0       |
| *e. Other          | \$ 0       |
| *f. Program Income | \$ 0       |
| *g. TOTAL          | \$ 850,000 |

**\*19. Is Application Subject to Review By State Under Executive Order 12372 Process?**

- ☐ a. This application was made available to the State under the Executive Order 12372 Process for review on \_\_\_\_\_.
- ☐ b. Program is subject to E.O. 12372 but has not been selected by the State for review.
- ☒ c. Program is not covered by E.O. 12372.

**\*20. Is the Applicant Delinquent On Any Federal Debt?**☐ Yes ☒ No

If "Yes", explain:

21. \*By signing this application, I certify (1) to the statements contained in the list of certifications\*\* and (2) that the statements herein are true, complete and accurate to the best of my knowledge. I also provide the required assurances\*\* and agree to comply with any resulting terms if I accept an award. I am aware that any false, fictitious, or fraudulent statements or claims may subject me to criminal, civil, or administrative penalties. (U. S. Code, Title 218, Section 1001)

☒ \*\* I AGREE

\*\* The list of certifications and assurances, or an internet site where you may obtain this list, is contained in the announcement or agency specific instructions.

**Authorized Representative:**

Prefix: Mr. \*First Name: Tim

Middle Name: \_\_\_\_\_

\*Last Name: Bradshaw

Suffix: \_\_\_\_\_

\*Title: Director of Aviation

\*Telephone Number: 307-634-7071

Fax Number:

\* Email: tbradshaw@cheyenneairport.com

\*Signature of Authorized Representative:

\*Date Signed: 06/07/2024



U.S. Department  
of Transportation  
**Federal Aviation  
Administration**

## **FAA Form 5100-100, Application for Federal Assistance (Development and Equipment Projects)**

### **Paperwork Reduction Act Burden Statement**

A federal agency may not conduct or sponsor, and a person is not required to respond to, nor shall a person be subject to a penalty for failure to comply with a collection of information subject to the requirements of the Paperwork Reduction Act unless that collection of information displays a currently valid OMB Control Number. The OMB Control Number for this information collection is 2120-0569. Public reporting for this collection of information is estimated to be approximately 28 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, completing and reviewing the collection of information. All responses to this collection of information are required under 49 U.S.C. Section 47105 to retain a benefit and to meet the reporting requirements of 2 CFR 200; no assurance of confidentiality is provided. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to: Information Collection Clearance Officer, Federal Aviation Administration, 10101 Hillwood Parkway, Fort Worth, TX 76177-1524.

## **INSTRUCTIONS FOR FORM 5100-100**

### **PART I – Application for Federal Assistance**

Part I of the Application for Federal Assistance consists of a completed Standard Form (SF) 424. The remaining parts of Form 5100-100 (Parts II, III and IV) represent continuation pages that the Sponsor must attach to the associated SF-424 form. The signature of the Sponsor's authorized representative on the SF-424 form represents acceptance of the representations and certifications made within the corresponding FAA 5100-100 form.

### **PART II – Project Approval Information**

This information is necessary for the Federal Aviation Administration to evaluate this request for Federal assistance. Responses do not require an explanation unless explicitly requested by the question.

#### **SECTION A. STATUTORY CONDITIONS**

**Item 1** – Indicate whether the Sponsor maintains an active registration in the Federal System for Award Management (SAM). Pursuant to 2 CFR §25.200(b), a Sponsor must maintain an active registration in the Central Contractor Registration repository (housed within SAM) with current information at the time of the application and during the active period of the Federal award.

**Item 2** – Indicate whether the Sponsor can commence the project within the same fiscal year the grant is made or within 6 months of when the grant is made, whichever is later. Attach explanation for negative responses. This information is considered when allocating discretionary funds. (49 U.S.C. § 47115(d)(2))

**Item 3** – Indicate whether the Sponsor can complete the project without unreasonable delays. If applicable, provide listing of foreseeable events (winter shutdown, land acquisition issues, non-aeronautical events, etc.) that have potential to delay completion of the project. (49 USC § 47106(a))

**Item 4** – Indicate whether the environmental review (i.e. environmental assessment, mitigated FONSI, etc.) identified impacts or effects on the environment that require mitigating measures that lessen the impact or effect on the environment. If yes, provide a summary listing of mitigating measures. (49 U.S.C. § 47106(c))

**Item 5** – Indicate whether the project covered by this request is also covered by an approved Passenger Facility Charge (PFC) application or other Federal assistance program by selecting all applicable check boxes (49 U.S.C. § 40117(d) and 2 CFR § 200.403). If the approved PFC application only addresses the Sponsor's AIP matching share, select the appropriate check box.

If the project, or portions thereof, is covered by another Federal assistance program, identify the Federal assistance program by name and the Catalog of Federal Domestic Assistance (CFDA) number.

**Item 6** – Indicate whether the Sponsor intends to seek reimbursement of Sponsor indirect costs as defined by 2 CFR §200.414 and 2 CFR Appendix VII to Part 200. This information request **does not** include the indirect costs claimed by a for-profit entity (e.g. consultant).

- The de minimis rate may only be used if the Sponsor has not previously received a negotiated Indirect Cost Rate (ICR) and does not exceed the limitations prescribed in Appendix VII to Part 200.
- A Sponsor with an existing approved negotiated ICR must identify the ICR value, the name of the cognizant agency that approved the ICR and the date of approval.

## **SECTION B. CERTIFICATION REGARDING LOBBYING**

This section addresses the Sponsor's declaration regarding lobbying activities. The declaration made in the section are under signature of the authorized representative as identified in box 21 of form SF-424, to which this form is attached.

Title 31 U.S.C. § 1352 establishes that no appropriated funds may be expended by a recipient of a Federal grant to pay any person for influencing or attempting to influence an officer or employee of any agency, Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this covered Federal assistance action. Pursuant to 40 CFR part 20, this certification attests that the Sponsor has not made, and will not make, any prohibited payment by 31 U.S.C. § 1352.

## SECTION C. REPRESENTATIONS AND CERTIFICATION

1. **Compatible Land Use** (49 U.S.C. § 47107(a)(10)) – Identify actions the Sponsor has taken to assure land uses in close proximity to the airport are compatible with normal airport operations.
2. **Defaults** – Confirm that Sponsor is not in default on any obligation to the United States or any agency of the United States government.
3. **Possible Disabilities** – Confirm that Sponsor has no facts or circumstances (i.e. legal, financial or otherwise) that might adversely affect the Sponsor in completing the project and carrying out the provisions of the associated Grant Assurances.
4. **Consistency with Local Plans** (49 U.S.C. § 47106(a)) – Confirm project is consistent with plans (existing at the time the project is approved) of public agencies authorized by the State in which the airport is located to plan.
5. **Consideration of Local Interests** (49 U.S.C. § 47106(b)) – Confirm the Sponsor has given fair consideration to the community in and near the project.
6. **Consultation with Users** (49 U.S.C. § 47105(a)) - Confirm the Sponsor has consulted with airport users that will be affected by the project.
7. **Public Hearings** (49 U.S.C. § 47106(c)) – For projects involving the location of an airport, runway or major runway extension, confirm the Sponsor:
  - a. Provided an opportunity for a public hearing to consider economic, social and environmental effects of the project.
  - b. Has voting representation from the communities in which the project is located; or has advised the communities that they have the right to petition the Secretary about the proposed project.
8. **Air and Water Quality Standards** - Confirm Sponsor will comply with applicable air and water quality standards.
9. **Exclusive Rights** (49 U.S.C. § 47107(a)) – Identify all instances of exclusive rights to conduct aeronautical services at the airport.
10. **Land (49 U.S.C. § 47106(b))** –
  - a. Identify property interests specific to the development project and/or land acquisition. The declaration of property interest is to be based upon a title opinion submitted by an attorney. When identifying the property interest, use the same parcel numbers as used to identify the property on the associated Exhibit A property map.  
Example: “*Sponsor maintains property interest as depicted within the property table on the Exhibit A property map dated \_\_/\_\_/\_\_ originally filed with AIP Project ###.*”
  - b. Complete this subpart if the Sponsor proposes a project for which they have not yet obtained appropriate property interests. Note that the work may not commence until Sponsor obtains acceptable property interests. Identify such property by parcel number that corresponds to the associated Exhibit A property map.
  - c. Complete this subpart when acquiring property interests under the grant. Identify such property by parcel number that corresponds to the associated Exhibit A property map.

## **PART III – Budget Information**

### **SECTION A. GENERAL**

**1. Assistance Listing Number** - Show the Assistance Listing Number from which the assistance is requested.

**2. Functional or Other Breakout:** Indicate “Airport Improvement Program”. Prepare a separate set of Part III forms for other Federal program categories.

### **SECTION B. CALCULATION OF FEDERAL GRANT**

When applying for a new grant, use the Total Amount Column only. Use all columns when requesting revisions of previously awarded amounts.

**Line 1** - Enter amounts needed for administration expenses, which may include such items as: legal fees, mailing/shipping expenses, audit fees and documented Sponsor employee time that is necessary to administer the grant.

**Line 2** - Enter amounts pertaining to allowable preliminary expenses. These include such expenses as independent fee estimate preparation, advertising expenses and permits.

**Line 3** - Enter amounts directly associated with the acquisition of land, existing structures, and related right-of-way.

**Line 4** - Enter fees for architectural engineering basic services.

**Line 5** - Enter amounts for architectural engineering special services (e.g. surveys, tests and borings).

**Line 6** - Enter fees for inspection, testing and monitoring of construction and related programs.

**Line 7** - Enter amounts associated with the development of land where the primary purpose of the grant is land improvement. Site work normally associated with major construction should be excluded from this category and shown on line 11.

**Line 8** - Enter the dollar amounts needed to provide relocation advisory assistance, and the net amounts for replacement (last resort) housing. Do not include relocation administration expenses on this Line; include them on Line 1.

**Line 9** - Enter the estimated amount of relocation payments to be made to displaced persons, business concerns, and non-profit organizations for moving expenses and replacement housing.

**Line 10** - Enter the cost of demolition or removal of improvements on developed land. Reduce the costs on this line by the amount of expected proceeds from the sale of salvage, if so instructed by the Federal grantor agency. Otherwise, show the proceeds on Line 15.

**Line 11** - Enter amounts for the actual construction of, addition to or restoration of a facility. Include in this category the amounts of project improvements such as grading, drainage, paving, marking, lighting, buildings, seeding/sodding, etc.

**Line 12** - Enter amounts for equipment. Examples include ARFF vehicles, SRE equipment, AWOS equipment, interactive training, NAVAID equipment, etc.)

**Line 13** - Enter miscellaneous amounts for items not specifically covered by previous categories.

**Line 14** - Enter the sum of Lines 1-13.

**Line 15** - Enter the estimated amount of program income that will be earned during the grant period and applied to the program. Examples include vehicle trade-in value, sale of millings resulting from project, credits passed on from contractor, etc. This line may be used to indicate applied liquidated damages.

**Line 16** - Enter the difference between Line 14 and Line 15.

**Line 17** - Enter the aggregate amount for those items, which are a part of the project but not subject to Federal participation. Refer to Section C, exclusions.

**Line 18** - Enter the subtotal sum of Lines 16 and 17. (This is the amount to which the matching share ratio prescribed in program legislation is applied.)

**Line 19** - Indicate the total amount of the Federal assistance requested. This value is determined by multiplying the grant participation rate by the amount indicated in line 18.

**Line 20** - Indicate the amount of the Grantee's share (from Section D).

**Line 21** - Indicate the amount of other shares (from Section D)

**Line 22** - Indicate sum of Lines 19, 20 and 21.

#### **SECTION C. EXCLUSIONS**

**Line 23 a-g** - Identify and list those costs which are part of the project cost but are not subject to Federal participation because of program legislation or Federal grantor agency instructions. The total amount on Line g should agree with the amount shown on Line 17 of Section B.

#### **SECTION D. PROPOSED METHOD OF FINANCING NON-FEDERAL SHARE**

**Line 24 a-g** - Show the source of the grantee's share. If cash is not immediately available, specify the actions completed to date and those actions remaining to make cash available under Section E - Remarks. Indicate also the period of time that will be required after execution of the grant agreement to obtain the funds. If there is a non-cash contribution, explain what this contribution will consist of.

**Line 24h** - Indicate total of Lines 24 a-g. This amount must equal the amount in Section B, Line 20.

**Line 25a** - Show the amount that will be contributed by a State or state agency, only if the applicant is not a State or state agency. If there is a non-cash or other contribution, explain what the contribution will consist of under Section E - Remarks.

**Line 25b** - Show the amount that will be contributed from other sources. If there is a non-cash contribution, explain what the contribution will consist of under Section E - Remarks.

**Line 25c** - Show the total of Lines 25a and 25b. This amount must be the same as the amount shown in Section B, Line 21.

**Line 26** - Enter the totals of Lines 24h and 25c.

#### **SECTION E. OTHER REMARKS**

Make any remarks pertinent to the project and provide any other information required by these instructions or the grantor agency. Attach additional sheets, if necessary.

## **PART IV – Program Narrative**

Prepare the program narrative statement in accordance with the following instructions for all new grant programs. Requests for supplemental assistance should be responsive to Item 5b only. Requests for continuation or refunding or other changes of an approved project should be responsive to Item 5c only.

### **1. OBJECTIVES AND NEED FOR THIS ASSISTANCE**

Provide a short and concise description of the proposed improvement. Include a narrative on why this improvement is needed.

### **2. RESULTS OR BENEFITS EXPECTED**

Identify results and benefits to be derived. For example, include a description of who will occupy the facility and show how the facility will be used. For land acquisition or development projects, explain how the project will benefit the public.

### **3. APPROACH**

- a. Outline a plan of action pertaining to the scope and detail of how the Sponsor proposes to accomplish the work.
- b. Cite factors, which might accelerate or decelerate the work, and your reason for taking this approach as opposed to others. Describe any unusual features of the project such as construction approach, reductions in cost or time or extraordinary social and community involvements.
- c. Provide projections of project milestone dates. As a minimum, identify target dates for defining project costs (i.e. bid opening or completion of negotiations), anticipated issuance of notice-to-proceed and anticipated project completion date.
- d. Identify monitoring and oversight mechanisms the Sponsor proposes to implement.
- e. List key individuals and entities such as consultant, Sponsor personnel and contractor who will work on the project. Provide a short description of the nature of their effort or contribution.

### **4. GEOGRAPHIC LOCATION**

Identify location of the project. This will typically be the name of the airport.

### **5. IF APPLICABLE, PROVIDE THE FOLLOWING INFORMATION:**

- a. Describe the relationship between this project and other work planned, anticipated or underway under the Federal Assistance listed under Part II, Section A, Item 5.
- b. Explain the reason for all requests for supplemental assistance and justify the need for additional funding.
- c. If there have been significant changes in the project objectives, location, approach or time delays, explain and justify. For other requests for changes or amendments, explain the reason for the change(s). If the scope, budget, or objectives have changed or an extension of time is necessary, explain the circumstances and justify.

### **6. SPONSOR'S REPRESENTATIVE**

Identify contact information of Sponsor's representative.

## Application for Federal Assistance (Development and Equipment Projects)

### PART II – PROJECT APPROVAL INFORMATION

| Part II - SECTION A                                                                                                                                                                                                                                                                     |                                                                                                  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| The term "Sponsor" refers to the applicant name provided in box 8 of the associated SF-424 form.                                                                                                                                                                                        |                                                                                                  |
| <b>Item 1.</b><br>Does Sponsor maintain an active registration in the System for Award Management (www.SAM.gov)?                                                                                                                                                                        | <input checked="" type="checkbox"/> Yes <input type="checkbox"/> No                              |
| <b>Item 2.</b><br>Can Sponsor commence the work identified in the application in the fiscal year the grant is made or within six months after the grant is made, whichever is later?                                                                                                    | <input checked="" type="checkbox"/> Yes <input type="checkbox"/> No <input type="checkbox"/> N/A |
| <b>Item 3.</b><br>Are there any foreseeable events that would delay completion of the project? If yes, provide attachment to this form that lists the events.                                                                                                                           | <input type="checkbox"/> Yes <input checked="" type="checkbox"/> No <input type="checkbox"/> N/A |
| <b>Item 4.</b><br>Will the project(s) covered by this request have impacts or effects on the environment that require mitigating measures? If yes, attach a summary listing of mitigating measures to this application and identify the name and date of the environmental document(s). | <input type="checkbox"/> Yes <input checked="" type="checkbox"/> No <input type="checkbox"/> N/A |
| <b>Item 5.</b><br>Is the project covered by this request included in an approved Passenger Facility Charge (PFC) application or other Federal assistance program? If yes, please identify other funding sources by checking all applicable boxes.                                       |                                                                                                  |
| <input type="checkbox"/> The project is included in an <i>approved</i> PFC application.<br>If included in an approved PFC application,<br>does the application <i>only</i> address AIP matching share? <input type="checkbox"/> Yes <input type="checkbox"/> No                         |                                                                                                  |
| <input type="checkbox"/> The project is included in another Federal Assistance program. Its CFDA number is below.                                                                                                                                                                       |                                                                                                  |
| <b>Item 6.</b><br>Will the requested Federal assistance include Sponsor indirect costs as described in 2 CFR Appendix VII to Part 200, States and Local Government and Indian Tribe Indirect Cost Proposals?                                                                            |                                                                                                  |
| <input type="checkbox"/> Yes <input checked="" type="checkbox"/> No <input type="checkbox"/> N/A                                                                                                                                                                                        |                                                                                                  |
| If the request for Federal assistance includes a claim for allowable indirect costs, select the applicable indirect cost rate the Sponsor proposes to apply:                                                                                                                            |                                                                                                  |
| <input type="checkbox"/> De Minimis rate of 10% as permitted by 2 CFR § 200.414.                                                                                                                                                                                                        |                                                                                                  |
| <input type="checkbox"/> Negotiated Rate equal to _____ % as approved by _____ (the Cognizant Agency)<br>on _____ (Date) (2 CFR part 200, appendix VII).                                                                                                                                |                                                                                                  |
| <i>Note: Refer to the instructions for limitations of application associated with claiming Sponsor indirect costs.</i>                                                                                                                                                                  |                                                                                                  |

**PART II - SECTION B**

**Certification Regarding Lobbying**

The declarations made on this page are under the signature of the authorized representative as identified in box 21 of form SF-424, to which this form is attached. The term "Sponsor" refers to the applicant name provided in box 8 of the associated SF-424 form.

The Authorized Representative certifies, to the best of his or her knowledge and belief, that:

(1) No Federal appropriated funds have been paid or will be paid, by or on behalf of the Sponsor, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.

(2) If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the Authorized Representative shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.

(3) The Authorized Representative shall require that the language of this certification be included in the award documents for all sub-awards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.

**PART II – SECTION C**

The Sponsor hereby represents and certifies as follows:

**1. Compatible Land Use** – The Sponsor has taken the following actions to assure compatible usage of land adjacent to or in the vicinity of the airport:

Compatible land use is outlined in the CYS Master Plan Update and Airport Layout Plan (Mar 2014).

**2. Defaults** – The Sponsor is not in default on any obligation to the United States or any agency of the United States Government relative to the development, operation, or maintenance of any airport, except as stated herewith:

N/A

**3. Possible Disabilities** – There are no facts or circumstances (including the existence of effective or proposed leases, use agreements or other legal instruments affecting use of the Airport or the existence of pending litigation or other legal proceedings) which in reasonable probability might make it impossible for the Sponsor to carry out and complete the Project or carry out the provisions of the Grant Assurances, either by limiting its legal or financial ability or otherwise, except as follows:

N/A

**4. Consistency with Local Plans** – The project is reasonably consistent with plans existing at the time of submission of this application) of public agencies that are authorized by the State in which the project is located to plan for the development of the area surrounding the airport.

N/A

**5. Consideration of Local Interest** – It has given fair consideration to the interest of communities in or near where the project may be located.

N/A

**6. Consultation with Users** – In making a decision to undertake an airport development project under Title 49, United States Code, it has consulted with airport users that will potentially be affected by the project (§ 47105(a)(2)).

N/A

**7. Public Hearings** – In projects involving the location of an airport, an airport runway or a major runway extension, it has afforded the opportunity for public hearings for the purpose of considering the economic, social, and environmental effects of the airport or runway location and its consistency with goals and objectives of such planning as has been carried out by the community and it shall, when requested by the Secretary, submit a copy of the transcript of such hearings to the Secretary. Further, for such projects, it has on its management board either voting representation from the communities where the project is located or has advised the communities that they have the right to petition the Secretary concerning a proposed project.

N/A

**8. Air and Water Quality Standards** – In projects involving airport location, a major runway extension, or runway location it will provide for the Governor of the state in which the project is located to certify in writing to the Secretary that the project will be located, designed, constructed, and operated so as to comply with applicable and air and water quality standards. In any case where such standards have not been approved and where applicable air and water quality standards have been promulgated by the Administrator of the Environmental Protection Agency, certification shall be obtained from such Administrator. Notice of certification or refusal to certify shall be provided within sixty days after the project application has been received by the Secretary.

N/A

**PART II – SECTION C (Continued)**

**9. Exclusive Rights** – There is no grant of an exclusive right for the conduct of any aeronautical activity at any airport owned or controlled by the Sponsor except as follows:

None

**10. Land** – (a) The sponsor holds the following property interest in the following areas of land, which are to be developed or used as part of or in connection with the Airport subject to the following exceptions, encumbrances, and adverse interests, all of which areas are identified on the aforementioned property map designated as Exhibit “A”. [1]

The Sponsor holds the necessary ownerships on all land on which construction will take place on this AIP grant. See CYS Exhibit A Property Map.

The Sponsor further certifies that the above is based on a title examination by a qualified attorney or title company and that such attorney or title company has determined that the Sponsor holds the above property interests.

(b) The Sponsor will acquire within a reasonable time, but in any event prior to the start of any construction work under the Project, the following property interest in the following areas of land on which such construction work is to be performed, all of which areas are identified on the aforementioned property map designated as Exhibit “A”. [1]

N/A

(c) The Sponsor will acquire within a reasonable time, and if feasible prior to the completion of all construction work under the Project, the following property interest in the following areas of land which are to be developed or used as part of or in connection with the Airport as it will be upon completion of the Project, all of which areas are identified on the aforementioned property map designated as Exhibit “A”. [1]

N/A

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<sup>1</sup> State the character of property interest in each area and list and identify for each all exceptions, encumbrances, and adverse interests of every kind and nature, including liens, easements, leases, etc. The separate areas of land need only be identified here by the area numbers shown on the property map.

## PART III – BUDGET INFORMATION – CONSTRUCTION

| SECTION A – GENERAL              |                             |
|----------------------------------|-----------------------------|
| 1. Assistance Listing Number:    | 20-106                      |
| 2. Functional or Other Breakout: | Airport Improvement Program |

| SECTION B – CALCULATION OF FEDERAL GRANT                       |                                                    |                                                           |                       |
|----------------------------------------------------------------|----------------------------------------------------|-----------------------------------------------------------|-----------------------|
| Cost Classification                                            | Latest Approved Amount<br>(Use only for revisions) | Adjustment<br>+ or (-) Amount<br>(Use only for revisions) | Total Amount Required |
| 1. Administration expense                                      |                                                    |                                                           | \$ 1,000              |
| 2. Preliminary expense                                         |                                                    |                                                           |                       |
| 3. Land, structures, right-of-way                              |                                                    |                                                           |                       |
| 4. Architectural engineering basic fees                        |                                                    |                                                           | 97,978                |
| 5. Other Architectural engineering fees                        |                                                    |                                                           |                       |
| 6. Project inspection fees                                     |                                                    |                                                           |                       |
| 7. Land development                                            |                                                    |                                                           |                       |
| 8. Relocation Expenses                                         |                                                    |                                                           |                       |
| 9. Relocation payments to Individuals and Businesses           |                                                    |                                                           |                       |
| 10. Demolition and removal                                     |                                                    |                                                           |                       |
| 11. Construction and project improvement                       |                                                    |                                                           | 751,022               |
| 12. Equipment                                                  |                                                    |                                                           |                       |
| 13. Miscellaneous                                              |                                                    |                                                           |                       |
| 14. <b>Subtotal</b> (Lines 1 through 13)                       |                                                    |                                                           | \$ 850,000            |
| 15. Estimated Income (if applicable)                           |                                                    |                                                           |                       |
| 16. Net Project Amount (Line 14 minus 15)                      |                                                    |                                                           | 850,000               |
| 17. <b>Less:</b> Ineligible Exclusions (Section C, line 23 g.) |                                                    |                                                           |                       |
| 18. <b>Subtotal</b> (Lines 16 through 17)                      |                                                    |                                                           | \$ 850,000            |
| 19. Federal Share requested of Line 18                         |                                                    |                                                           | 850,000               |
| 20. Grantee share                                              |                                                    |                                                           |                       |
| 21. Other shares                                               |                                                    |                                                           |                       |
| 22. <b>TOTAL PROJECT</b> (Lines 19, 20 & 21)                   |                                                    |                                                           | \$ 850,000            |

| <b>SECTION C – EXCLUSIONS</b>                                     |                                            |
|-------------------------------------------------------------------|--------------------------------------------|
| <b>23. Classification (Description of non-participating work)</b> | <b>Amount Ineligible for Participation</b> |
| a.                                                                |                                            |
| b.                                                                |                                            |
| c.                                                                |                                            |
| d.                                                                |                                            |
| e.                                                                |                                            |
| f.                                                                |                                            |
| g. <b>Total</b>                                                   |                                            |

| <b>SECTION D – PROPOSED METHOD OF FINANCING NON-FEDERAL SHARE</b> |               |
|-------------------------------------------------------------------|---------------|
| <b>24. Grantee Share – Fund Categories</b>                        | <b>Amount</b> |
| a. Securities                                                     |               |
| b. Mortgages                                                      |               |
| c. Appropriations (by Applicant)                                  |               |
| d. Bonds                                                          |               |
| e. Tax Levies                                                     |               |
| f. Non-Cash                                                       |               |
| g. Other (Explain):                                               |               |
| h. <b>TOTAL</b> - Grantee share                                   | \$ 0          |
| <b>25. Other Shares</b>                                           | <b>Amount</b> |
| a. State                                                          |               |
| b. Other                                                          |               |
| c. <b>TOTAL</b> - Other Shares                                    | \$ 0          |
| <b>26. TOTAL NON-FEDERAL FINANCING</b>                            | \$ 0          |

| <b>SECTION E – REMARKS</b><br>(Attach sheets if additional space is required)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p>The following are attached to this application:</p> <ul style="list-style-type: none"> <li>Airport Sponsor Assurances</li> <li>Sponsor Certification for a Drug-Free Workplace</li> <li>Current FAA Advisory Circulars Required for Use in AIP Funded and PFC Approved Projects (2/28/2020)</li> <li>Standard DOT Title IV Assurances</li> <li>CIP Pre-Application Data Sheet</li> <li>Exhibit A Property Map; Summary of Project Costs</li> </ul> <p>The following items are incorporated by reference:</p> <p>Project Drawings, Contract Documents, and Technical Specifications</p> |

**PART IV – PROGRAM NARRATIVE**  
(Suggested Format)

**PROJECT:** Airport Tower Renovation

**AIRPORT:** Cheyenne Regional Airport (CYS)

**1. Objective:**

Design and construct the rehabilitation of the Air Traffic Control Tower (ATCT) at Cheyenne Regional Airport (CYS).

**2. Benefits Anticipated:**

Building improvements including water intrusion sealant and prevention, door and window replacement, HVAC and electrical improvements and other general building repairs.

**3. Approach:** (See approved Scope of Work in Final Application)

**4. Geographic Location:**

CYS is located approximately one mile north of the City of Cheyenne, WY in Laramie County, WY.  
The Airport Elevation is 6,156 feet.  
The airport is located at Lat 41 09' 20.30" N, Long 104 48' 37.7000 W"

**5. If Applicable, Provide Additional Information:**

None

**6. Sponsor's Representative:** (include address & telephone number)

Mr. Tim Bradshaw  
1401 Airport Parkway  
Cheyenne, WY 82001 307-634-7071